



110 N. Elgin Ave., Suite 200
Tulsa, Oklahoma 74120-1495
Tel: 918/595-4800 Fax: 918/595-4990

MEMORANDUM

TO: Tulsa City Council
FROM: Adam C. Doverspike, GableGotwals
DATE: August 27, 2026
RE: Request for Exception to Data Center Moratorium — T20 Mining Group LLC

On behalf of T20 Mining Group LLC (“Applicant”), GableGotwals respectfully requests that the Tulsa City Council grant an exception to the Data Center Moratorium (Ordinance No. 25764) for the property located at 5555 S. 129th E. Ave. and 5665 S. 129th E. Ave., Tulsa, Oklahoma (the “Property”). T20 Mining Group LLC, through an affiliate, has entered into a purchase agreement and has the exclusive right to purchase the Property from current owner, 5555 Property Developers LLC.

Section 3 of the Ordinance authorizes the Council to grant an exemption for good cause shown. Here, good cause exists because the proposed conversion of the existing bitcoin mining data center use to more traditional data center use does not implicate any of the impacts the moratorium was designed to pause.

I. The Moratorium’s Regulatory Purpose Is Not at Issue Here

Ordinance No. 25764 was adopted to give the City time to assess the potential impacts of new, large-scale data center development. Specifically, the Council raises concerns about the impact of new, hyperscale data centers on rising electric demand, noise, and land-use compatibility with residential neighbors. None of those concerns apply to this Project.

A. No New Scale or Development

The moratorium pauses impacts from new large-scale data centers. The Applicant proposes a renovation of an existing warehouse: no new structure, no footprint expansion, and no intensified site development. This is adaptive reuse of an existing industrial building, not the type of greenfield, large-footprint construction the moratorium was designed to pause and study.

B. Similar Electrical Load

The moratorium was designed, in part, to allow the City to review potential impacts as data-center scale electricity demands increase. The Property currently operates a cryptocurrency mining facility drawing approximately 50 MW of power. The proposed data center conversion uses a similar amount of electrical load and relies on existing electric infrastructure.

C. Net Reduction in Noise

The moratorium directed the City to evaluate whether data centers create noticeable off-site noise. The Project site currently houses outdoor containerized cryptocurrency mining equipment, which generate significant off-site noise. The proposed conversion moves processing indoors, resulting in a reduction in off-site noise. The conversion is a neighborhood improvement on this factor, not a concern.

D. Compatible Land Use — No Residential Neighbors

Councilors specifically addressed the need to reassess data center impacts on residential properties near projects. The Property here is zoned Light Industrial and is surrounded by industrial uses. There is no residential zoning within a one-mile radius. *See* Ex. A: Satellite Imagery of Location. The land-use compatibility concern that motivated the moratorium is simply not present here.

III. Granting This Exception Preserves the Moratorium's Integrity

Approving this exception does not undermine the moratorium. The ordinance's exception procedure exists precisely for projects like this one: transitions that preserve the status quo on the impact factors the Council sought to study. Declining to grant the exception would penalize a project that poses none of the identified concerns.

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For the foregoing reasons, the Applicant respectfully requests that the Tulsa City Council grant an exception to Ordinance No. 25764 for the Property identified in the attached Satellite Imagery at 5555 S. 129th E. Ave. and 5665 S. 129th E. Ave.

Respectfully submitted,

Adam C. Doverspike

Shareholder, GableGotwals

Tel: (918) 595-4800 | adoverspike@gablelaw.com

